

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carter Garfield	Team: Squad #16	CCRB Case #: 202208046	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 11/10/2022 4:15 AM	Location of Incident: § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED]	18 Mo. SOL 5/10/2024	Precinct: 14
Date/Time CV Reported Wed, 11/23/2022 12:44 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 11/23/2022 12:44 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. PO Vincent Martinez	13228	963635	MTS PCT
2. PO Ryan Young	20674	963340	MTS PCT
3. PO Perla Javier	23060	969132	MTS PCT
4. SGT Adam Lagnese	02542	940351	MTS PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Calvin Echevarria	03024	972620	MTS PCT
2. PO John Barth	16768	957362	MTS PCT
3. PO Danamarie Alessio	00287	949983	MTS PCT
4. PO Glenroy Dundas	09976	970498	MTS PCT
5. PO Kyle Divirgilio	20926	956604	MTS PCT
6. PO Christopher Connor	14185	971379	MTS PCT
7. PO Jonathan Gualpa	11350	970572	MTS PCT
8. PO Dylan Chateau	06649	971368	MTS PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Ryan Young	Abuse: Police Officer Ryan Young entered § 87(2)(b) [REDACTED] in Manhattan.	A . Substantiated
B . PO Perla Javier	Abuse: Police Officer Perla Javier entered § 87(2)(b) [REDACTED] in Manhattan.	B . Substantiated
C . PO Vincent Martinez	Abuse: Police Officer Vincent Martinez entered § 87(2)(b) [REDACTED] in Manhattan.	C . Substantiated
D . PO Ryan Young	Force: Police Officer Ryan Young used physical force against § 87(2)(b) [REDACTED]	D . Within NYPD Guidelines
E . PO Perla Javier	Force: Police Officer Perla Javier used physical force against § 87(2)(b) [REDACTED]	E . Within NYPD Guidelines
F . PO Vincent Martinez	Force: Police Officer Vincent Martinez used physical force against § 87(2)(b) [REDACTED]	F . Within NYPD Guidelines
G . PO Ryan Young	Abuse: Police Officer Ryan Young threatened § 87(2)(b) [REDACTED] with the use of force.	G . Within NYPD Guidelines

Officer(s)	Allegation	Inv. Div. Recommendation
H . SGT Adam Lagnese	Abuse: Sergeant Adam Lagnese arrested § 87(2)(b) unlawfully.	H . Substantiated

Case Summary

On November 23, 2022, § 87(2)(b) filed the following complaint on the CCRB website on behalf of themself and § 87(2)(b).

On November 10, 2022, at approximately 4:15 a.m., § 87(2)(b) and § 87(2)(b) were in § 87(2)(b) in Manhattan, when they heard a knock at the door. Several officers from the 14th Precinct were in the hallway due to a 911 call placed by a neighbor, § 87(2)(b).

§ 87(2)(b) opened the door and PO Ryan Young, PO Perla Javier, and PO Vincent Martinez entered the apartment and forcefully placed him in handcuffs (**Allegations A-C: Abuse of Authority, substantiated**) (**Allegations D-F: Force, within NYPD guidelines**).

PO Young pointed his Taser at § 87(2)(b) and told them to put their hands up (**Allegation G: Abuse of Authority, within NYPD guidelines**). Officers then placed § 87(2)(b) in handcuffs.

Sgt. Lagnese then wrongfully arrested § 87(2)(b) (**Allegation H: Abuse of Authority, substantiated**). § 87(2)(b) was charged with criminal mischief (**BR 24**). § 87(2)(b) was arrested and charged with violating an order of protection, possession of a controlled substance, and trespassing (**BR 23**).

The investigation is in possession of thirteen BWC videos pertaining to this incident (**BRs 07 – 19**). The investigation is not in possession of additional video footage.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Ryan Young entered § 87(2)(b) in Manhattan.

Allegation (B) Abuse of Authority: Police Officer Perla Javier entered § 87(2)(b) in Manhattan.

Allegation (C) Abuse of Authority: Police Officer Vincent Martinez entered § 87(2)(b) in Manhattan.

Allegation (D) Force: Police Officer Ryan Young used physical force against § 87(2)(b).

Allegation (E) Force: Police Officer Perla Javier used physical force against § 87(2)(b).

Allegation (F) Force: Police Officer Vincent Martinez used physical force against § 87(2)(b).

§ 87(2)(b) (**BR 01**) stated they were asleep for the majority of the incident and could not recall any details of their arrest. They recalled waking up in Central Booking and speaking to an officer who told them that they had been arrested for possession of twenty kilograms of heroin. After being released from Central Booking, § 87(2)(b) met with § 87(2)(b) who told them what had happened. § 87(2)(b) stated that they had a “limited” Order of Protection (OOP) against § 87(2)(b) that said § 87(2)(b) could not hit them.

In his CCRB statement, § 87(2)(b) (**BR 02**) stated that he was washing dishes in his apartment when he heard officers talking to his next-door neighbor and, within a few minutes, heard a knock at his door. An officer immediately said, § 87(2)(b) “open the door,” before § 87(2)(b) identified himself. § 87(2)(b) initially refused but eventually did so.

Two officers pushed § 87(2)(b) door open, grabbed § 87(2)(b) by his arms, pulled him out of the apartment, and pulled both of his arms behind his back in a manner that § 87(2)(b) believed might break his arm. Officers then handcuffed him. An officer (identified by the investigation as PO Young) entered the apartment, pointed his Taser or gun at § 87(2)(b) and said, “Hold it right there.” He saw another officer enter the apartment, but officers walked § 87(2)(b) down the hallway of his apartment building where he could not see what was going on. He and § 87(2)(b) were eventually taken to the 14th Precinct stationhouse.

§ 87(2)(b) and § 87(2)(b) were both arrested. § 87(2)(b) was charged with criminal mischief (BR 24). § 87(2)(b) was charged with violating an order of protection, possession of a controlled substance, and trespassing (BR 23).

The investigation determined § 87(2)(b) testimony was not necessary as he did not witness these allegations.

PO Young (BR 03) testified that he received a radio run for a burglary in progress occurring at § 87(2)(b) (the apartment of § 87(2)(b)). He had never interacted with § 87(2)(b) before, but he had past experience with § 87(2)(b) and § 87(2)(b) who lived in § 87(2)(b). He explained that he had responded to this location before due to 911 calls for burglaries. (He was unable to give an estimate of how many times but stated that the last time was over three months prior to this incident.) He knew that § 87(2)(b) and § 87(2)(b) had filed upwards of ten OOPs against each other in the past and were known to call 911 on each other reporting that the other had violated an OOP. He could not recall what specifically resulted from these 911 calls. He was unaware if they had any active OOPs at the time. PO Young had also been informed by a Domestic Violence officer (he could not recall whom) at the beginning of his tour that day that § 87(2)(b) and § 87(2)(b) had been evicted from § 87(2)(b). He took no steps to verify that they had been evicted or if any OOP was active prior to this incident.

PO Young spoke with § 87(2)(b) who told officers that people in § 87(2)(b) were trying to break into his apartment through his window. Officers did not enter § 87(2)(b) apartment to assess his window. They took no additional investigative steps with § 87(2)(b). PO Young walked over to § 87(2)(b) and knocked on the door. PO Young did not believe the officers had any discussion as to how to conduct their investigation. PO Young stated that the purpose of knocking on the door to § 87(2)(b) was to conduct an investigation regarding the burglary. He further explained that because § 87(2)(b) had alleged people in § 87(2)(b) had attempted to break into § 87(2)(b) officers needed to clear § 87(2)(b) and remove everyone in order to conduct their investigation. He added that at no point was there any suspicion that people were trying to break into apartment § 87(2)(b).

PO Young spoke with an individual through the closed door of § 87(2)(b) who identified himself as § 87(2)(b). PO Young told § 87(2)(b) to open the door and § 87(2)(b) initially said no, but eventually opened the door halfway. PO Young then placed his foot in the doorway to prevent § 87(2)(b) from closing the door because he needed to conduct his investigation. He asked § 87(2)(b) to step out of the apartment. § 87(2)(b) refused and attempted to close his door, but the door hit PO Young's shoe. PO Young took this to be a sign of aggression and being uncooperative. PO Young then pushed the door open, stepped into the apartment, grabbed § 87(2)(b) by his arms, and pulled him out of the apartment. The officers then placed § 87(2)(b) in handcuffs. PO Young stated that § 87(2)(b) was not under arrest, but was detained in order for officers to conduct their investigation.

In his CCRB testimony, PO Martinez (BR 05) stated that while he had no prior interactions with § 87(2)(b) and § 87(2)(b) he knew that they both had an "extensive history" with the 14th Precinct involving domestic, narcotics, and EDP issues. He added that it was "well known" that they had OOPs against each other. He also knew that Domestic Violence officers at the 14th Precinct were working with § 87(2)(b) landlord to "build a case" against § 87(2)(b) in order to have him evicted. PO Martinez believed, based on the information the Domestic Violence officers provided him, that § 87(2)(b) had been evicted from the apartment a few days prior to this incident but was unable to recall when he was informed of this. He took no steps prior to this incident to verify if § 87(2)(b) and § 87(2)(b) had any active OOPs or if they had been evicted.

PO Martinez was with PO Young when he knocked on the door to § 87(2)(b) and spoke to § 87(2)(b). § 87(2)(b) told officers that nobody had broken into his apartment but he had heard noises outside of his window as well as in the apartment next door, § 87(2)(b) § 87(2)(b) had been told by his building management to call 911 if he heard anything coming from § 87(2)(b).

PO Martinez stated that, because he believed § 87(2)(b) had been evicted, this job was still considered a “burglary in progress” as someone might have broken into § 87(2)(b). When asked what the next investigative step would be after talking to § 87(2)(b), PO Martinez said it was to arrest § 87(2)(b) and § 87(2)(b). PO Young, PO Javier, and PO Martinez all entered the apartment, grabbed § 87(2)(b) by his arms, and placed him in handcuffs, where he was then walked down the hallway away from the apartment. § 87(2)(b) did not physically resist but did verbally protest. § 87(2)(b) said, “Ow, you’re hurting me,” when PO Martinez placed him in handcuffs. PO Martinez did not know why he said this. PO Martinez stated that he did not intentionally bend or twist § 87(2)(b) arm during his arrest but was only grabbing § 87(2)(b) arms to place him in handcuffs.

In his CCRB testimony, Sgt. Lagnese (BR 04) stated that he arrived after officers spoke to § 87(2)(b) and did not interact with PO Young, PO Martinez, or PO Javier prior to their entry into § 87(2)(b). He stated that he was informed by an officer on scene that § 87(2)(b) and § 87(2)(b) had been evicted from § 87(2)(b). He took no steps to verify this information and further stated that the sole purpose of entering § 87(2)(b) was to arrest § 87(2)(b) and § 87(2)(b) for trespassing. He was unable to explain why § 87(2)(b) was not charged with trespassing on his arrest report.

In his CCRB testimony, PO Divirgilio (BR 06) stated he notified Sgt. Lagnese on scene that § 87(2)(b) and § 87(2)(b) had been evicted, though he was unsure if the eviction had occurred the day before or was going to occur the day of the incident. He stated that a Domestic Violence officer had relayed this information to him sometime in the week prior. He took no additional steps to verify their eviction proceedings.

In PO Martinez’s BWC (BR 08), at 5:45, PO Martinez, PO Young, PO Javier, and PO Calvin Echevarria speak with § 87(2)(b). § 87(2)(b) gestures to § 87(2)(b) and says, “they were trying to break into my window, in my bedroom.” PO Martinez asks who, and § 87(2)(b) points to § 87(2)(b). PO Martinez says that there is not supposed to be anyone inside that apartment. § 87(2)(b) says that there are people that live there and that they go in and out of the apartment “all the time.” § 87(2)(b) told the officer that he did not know what the individuals looked like, stating that he just moved in yesterday. PO Javier asks him to close his door and to wait. PO Young knocks on § 87(2)(b).

At 6:30, PO Young speaks with § 87(2)(b) through the closed door to § 87(2)(b). PO Young asks § 87(2)(b) to open the door so they can discuss “an issue in the building.” At 7:02, PO Young says, § 87(2)(b) we’ve dealt with each other before. It’s Officer Young.” He asks § 87(2)(b) to open the door three more times. He tells § 87(2)(b) that there’s a broken window outside and he needs to talk to him. At 7:46, the door opens slightly. § 87(2)(b) refuses to step out of the apartment. The door moves shut but PO Young pushes the door open and steps into the apartment. PO Javier and PO Martinez follow PO Young inside while § 87(2)(b) says, “What the fuck is wrong with you guys?” PO Young says, “Step out. Don’t slam the door on me.” At 7:54, PO Young and PO Javier are holding § 87(2)(b) by his arms. PO Martinez places a handcuff on § 87(2)(b) right wrist at the doorway as they pull § 87(2)(b) closer.

The rest is more accurately captured on Sgt. Lagnese’s BWC (BR 15). At 3:10, PO Martinez is pulling § 87(2)(b) out of the apartment by his right wrist. § 87(2)(b) right arm, which has a handcuff on it (but he is not fully cuffed), is pulled to his right side and twisted as PO Martinez pulls him out of the apartment. § 87(2)(b) says, “Ow, fuck, my arm,” as this occurs.

The investigation obtained an Order to Show Cause, § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

The investigation obtained § 87(2)(b) arrest report (BR 24) in which the charge is criminal mischief due to a broken window inside of his apartment § 87(2)(b).

In *Payton v. New York*, 445 U.S. 573 (1979), it was determined that the Fourth Amendment “prohibits the police from making a warrantless and nonconsensual entry into a suspect’s home in order to make a routine felony arrest” (BR 20).

§ 87(2)(g)

It is therefore recommended that **Allegations A-C be substantiated.**

Patrol Guide Procedure 221-01 (BR 34) states that officers are permitted to use a reasonable amount of force in order to place a person in custody.

§ 87(2)(g)

It is therefore recommended that **Allegations D-F be closed as within NYPD guidelines.**

Allegation (G) Abuse of Authority: Police Officer Ryan Young threatened § 87(2)(b) with the use of force.

§ 87(2)(b) (BR 01) stated they were asleep for the majority of the incident and could not recall any details of their arrest.

§ 87(2)(b) (BR 02) stated that he was brought out of the apartment while PO Young entered the backroom of the apartment where § 87(2)(b) was sleeping. He saw PO Young pointing his Taser at § 87(2)(b) and saying, “Hold it right there.”

At 7:02 of PO Young’s BWC (BR 09), after removing § 87(2)(b) from the apartment, PO Young steps further inside the apartment and says, “If you’re out, let me see your hands. Put your hands up. Put your hands up! Put your hands up!” At 7:11, PO Young is seen pointing his taser at § 87(2)(b) who is sitting up in a bed with their hands at their sides. § 87(2)(b) is naked. PO Young helps § 87(2)(b) stand up and places them in handcuffs.

PO Young (BR 03) testified that as he removed § 87(2)(b) from the apartment, he heard some sort of “commotion” that sounded like someone moving around in the back of the apartment. From where he was positioned, PO Young could not see the source of the noise, so he called out to whomever was in the back of the apartment (identified via the investigation as § 87(2)(b) to show their hands and, when he did not see any hands, drew his Taser for his safety. Other than not seeing § 87(2)(b) hands as he commanded, there was no other reason why PO Young drew his Taser. He walked into the bedroom with his Taser pointed at § 87(2)(b) until § 87(2)(b) put their hands in the air. PO Young then holstered his Taser and placed § 87(2)(b) in handcuffs.

Patrol Guide Procedure 221-08 (BR 25) states a Conducted Electrical Weapon, or Taser, is to be used only against persons who are actively resisting, exhibiting active aggression or to prevent individuals from physically injuring themselves or other person(s) actually present. The procedure further requires officers to consider the totality of circumstances when deciding the reasonable amount of force necessary to overcome resistance when effecting an arrest or when taking a mentally ill or emotionally disturbed person into custody. Prior to discharging a Taser officers are

to issue an appropriate verbal warning, consistent with personal safety, to the intended subject.

BWC confirms that PO Young was initially unable to see § 87(2)(b) from his position in the apartment and gave multiple verbal commands for § 87(2)(b) to show their hands when he initially drew his Taser which § 87(2)(b) ignored. BWC also confirms that PO Young pointed his Taser at § 87(2)(b) only until § 87(2)(b) put their hands in the air, at which point PO Young holstered his Taser. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

It is therefore recommended that **Allegation G** be closed as within NYPD guidelines.

Allegation (H) Abuse of Authority: Sergeant Adam Lagnese arrested § 87(2)(b) unlawfully.

As Sgt. Lagnese was the supervising officer on scene, **Allegation H** is pleaded against him. The investigation obtained § 87(2)(b) arrest report (BR 24) in which the charge is criminal mischief due to a broken window inside of his apartment § 87(2)(b). The arrest report narrative states, “at T/P/O, reporter states perp did break window while entering location through window. CV states window will cost approx. \$1,250 USC to repair. Sgt. Lagnese on scene.” The report does not list any information regarding who this “reporter” or “CV” is.

Sgt. Lagnese (BR 04) testified that after § 87(2)(b) and § 87(2)(b) were removed from the apartment, he entered and investigated a broken window inside of the apartment. He explained that he observed a large portion of the window was removed from the frame. He stated that the window was not shattered but rather “completely missing.” Sgt. Lagnese said both § 87(2)(b) and § 87(2)(b) were placed under arrest for trespassing only. After the officers removed them from the apartment, Sgt. Lagnese did not take any investigative steps to verify whether they were trespassing. He did not remember having any conversation with § 87(2)(b) or § 87(2)(b) regarding if they were trespassing. Sgt. Lagnese then returned to the stationhouse and oversaw the processing of § 87(2)(b) and § 87(2)(b) arrests. Sgt. Lagnese explained that it was the arresting officer’s responsibility to verify if a person has been evicted in order to arrest them for trespassing, but he was “sure” that they would discuss it with him as well. He did not remember if he had any conversation with the arresting officer about § 87(2)(b) and § 87(2)(b) alleged eviction nor did he learn later that they were allowed to be in the apartment. § 87(2)(b) arrest report was presented during the interview, showing § 87(2)(b) only charge being criminal mischief. Viewing the report did not refresh his memory of what § 87(2)(b) was arrested for. He guessed that the window in question in the report was the window in § 87(2)(b) apartment.

PO Martinez (BR 05), the arresting officer, testified that at the stationhouse following § 87(2)(b) arrest, he called the landlord of § 87(2)(b) building and told him about the broken window. He could not recall any additional details of their conversation. He testified that he did this so that he would have him listed as the victim on § 87(2)(b) arrest report.

At no point in any officer’s BWC (BRs 07-19) is § 87(2)(b) seen breaking the window inside of his apartment.

The investigation obtained an Order to Show Cause, § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

NYS Penal Law § 140.05 (BR 35) states a person is guilty of trespass when that person knowingly enters or remains unlawfully in or upon premises.

NYS Penal Law § 145.05 (BR 36) states a person is guilty of criminal mischief when that person damages property of another person in an amount exceeding two hundred and fifty dollars.

Officers initially responded to this location due to § 87(2)(b) calling 911 and, upon

speaking to § 87(2)(b) on scene, officers learned that there had been no burglary, only that there were individuals inside of the apartment next door. A number of officers had been informed that an eviction might have taken place in the apartment next door, but no officer took any steps to verify this information on scene. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that Allegation H be substantiated.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 28).
- § 87(2)(b)
- PO Young has been a member-of-service for six years and this is the first CCRB complaint to which he has been a subject.
- Sgt. Lagnese has been a member of service for sixteen years and this is the first CCRB complaint to which he has been a subject.
- PO Javier has been a member-of-service for three years and this is the first CCRB complaint to which she has been a subject.
- PO Martinez has been a member of service for six years and has been listed as a subject in one CCRB complaint and two allegations, neither of which were substantiated.
 - 202301860 involves an allegation of force and an allegation of a forcible removal to the hospital. To date, this complaint is currently open.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- The investigation obtained Notices of Claim filed by both § 87(2)(b) and § 87(2)(b) in regards to this incident (BRs 30, 31) in which both individuals are seeking one million dollars in damages for personal, emotional, and physical injuries sustained during this incident. There is no 50-H hearing scheduled.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Squad: 16

Investigator:	<u>Carter Garfield</u>	<u>SI Garfield</u>	<u>7/28/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Patrick Yu</u>	<u>IM Patrick Yu</u>	<u>08/02/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date